Cr Rev 30-2019

LIC HOUSING FINANCE LTD. Vs. USHA KUMARI

19.10.2022

Present: Sh. Sunil Mittal, Ld. counsel with Ms. Karishma Manral from LICHF.
Accused in person.

Today accused has handed over a demand draft of Rs. 1,20,532/- i.e. the remaining cheque amount to Ld. Counsel for the complainant. Same is received by Ld. counsel for complainant.

Ld. Counsel for the complainant submits that some cost be also imposed upon the accused to compensate the complainant. Ld. counsel also relies upon Damodar S Prabhu judgment. Accused submits that she has paid the cheque amount at the earliest and therefore this thing be considered before any cost is imposed.

Since the matter pertains to year 2019, accused has paid the cheque amount without much delay, considering the situation of accused and in light of the judgment passed by *Hon'ble Supreme Court of India in Damodar S Prabhu Vs. Sayad Babalal H,* the matter shall be compounded subject to a cost of Rs. 10000/- to be paid to the complainant/Counsel for the complainant. Cost paid in cash.

Separate statement of Ld. Counsel for the complainant is recorded to this effect.

Statement perused.

The offence u/s 138 NI Act stands compounded against the accused person. Accused is hereby acquitted. Documents, if any, be released to rightful claimant as per rules. P/B and S/B, if any stands discharged.

File be consigned to record room after due compliance.

(Udbhav Kumar Jain)
MM-04 NI Act/RACC/NDD
19.10.2022